



Tribunals Ontario
Landlord and Tenant Board

Tenant Rights

Interpretation Guideline 6

(Disponible en français)

Interpretation Guidelines are intended to assist the parties in understanding the LTB's usual interpretation of the law, to provide guidance to Members and promote consistency in decision-making. However, a Member is not required to follow a Guideline and may make a different decision depending on the facts of the case.

Application About Tenant Rights (T2)

A tenant or former tenant may file an [Application About Tenant Rights \(T2\)](#) with the Landlord and Tenant Board (LTB) for an order that the landlord, superintendent or agent of the landlord:

- illegally entered the unit,
- altered a locking system on a door giving entry to the unit or the complex, without giving the tenant replacement keys,
- withheld the reasonable supply of any vital service, care service or food that it is the landlord's obligation to supply under the tenancy agreement or deliberately interfered with the reasonable supply of any vital service, care service or food,
- substantially interfered with the tenant's reasonable enjoyment of the premises,
- harassed, obstructed, coerced, threatened or interfered with a tenant,
- failed to make evicted tenant's property available during a 72 hour period after the enforcement of an eviction order, or
- did not give the tenant a written copy of the tenancy agreement for a care home or, the tenancy agreement did not include information about the care services and meals and/or the charges that tenant and the landlord agreed to.

If not sure which of these grounds applies or if more than one ground is applicable, check off all the grounds on the T2 application you think apply, and the issue can be addressed at the hearing.

The application should also include details about what happened, times and dates, and the names of the people involved. More details about how to properly complete the T2 application can be found in the [T2 Instructions](#).

A tenant is also entitled to raise these issues when responding to a rent arrears application filed by the landlord. See section 82 or 87(2) of the [Residential Tenancies Act, 2006](#) (RTA).

Naming Respondents

The right persons need to be named as respondents. The tenant should always name the landlord as a respondent in the application. In most cases a landlord will be responsible for the conduct of its employees and agents, such as superintendents and property managers. However, employees or agents of the landlord may

also be named as respondents in a T2 application if the tenant alleges they are personally responsible for the conduct in the application. The LTB cannot make any orders against a person who is not named as a respondent and has no opportunity to respond to it.

If only the landlord is named as a respondent, but the tenant proves that a superintendent or agent of the landlord was responsible for the action, the LTB can order remedies against the landlord but cannot make orders against the superintendent or agent. If a tenant wants to add a respondent after filing the application the LTB must consider whether the tenant should have been aware that the other respondent should have been named in the application. If the hearing had already started it would have to begin again if the request to add another respondent was granted.

Some landlords are corporations. A corporation may only act through human beings, namely, its officers and employees. A corporation may also enter into a contract with an agent to act on its behalf. Thus, if the individual who engaged in the action against the tenant was an officer, employee or agent of the corporation, the corporation is responsible as the landlord and the LTB may order remedies against both the individual and the corporation.

What Happens After Filing a T2 Application

The LTB will schedule a hearing to consider the application. Both the tenant and the landlord can attend the hearing and provide relevant evidence and submissions. Because this is a tenant application, the tenant must prove that it is more likely than not that the allegations in the application are true. The LTB sends a written copy of its order (decision) to all the parties after the hearing has ended.

T2 Application - Illegal Entry

Section 25 says that landlord can only enter a rental unit in accordance with sections 26 or 27. Sections 26 and 27 contain rules about when a landlord can enter a rental unit.

The landlord can enter a rental unit at any time without written notice if:

- There is an emergency. See for example: [SOT-69391-16 \(Re\)](#), 2016 CanLII 44356 (ON LTB); [TST-79558-16-RV \(Re\)](#), 2017 CanLII 60135 (ON LTB); [TST-63672-15 \(Re\)](#), 2015 CanLII 75855 (ON LTB); [HOT-01008-16 \(Re\)](#), 2017 CanLII 9541 (ON LTB),
- The tenant consents at the time the landlord enters the rental unit. See for example: [TST-83097-17 \(Re\)](#), 2017 CanLII 60418 (ON LTB); [CET-63266-16 \(Re\)](#), 2017 CanLII 28532 (ON LTB); [CEL-61749-16-RV \(Re\)](#), 2017 CanLII 28724 (ON LTB),
- The tenancy agreement requires the landlord to clean the rental unit. This must be between 8:00 am and 8:00 pm, unless the tenancy agreement says otherwise,
- The landlord wants to show the rental unit to a prospective tenant once either the landlord or the tenant has given a notice of termination or if they have agreed to terminate the tenancy. The landlord may only show the rental unit between 8:00 am and 8:00 pm and must make a reasonable effort to inform the tenant before entering,
- The landlord is required by the tenancy agreement to check on the condition of a tenant in a care home.

The landlord can enter a rental unit between 8:00 am and 8:00 pm if they have given the tenant a written notice of entry at least 24 hours in advance in order to:

- Repair the rental unit,
- Inspect the rental unit, if it is reasonable to do so, or to determine if any repairs are required in the unit,
- Allow a potential mortgagee or insurer to view the rental unit,

- Allow a qualified person, such as an architect or engineer, to make a physical inspection of a rental unit where the landlord has filed an application to convert the rental property to a condominium and an inspection is required under subsection 9(4) of the *Condominium Act*, or
- For any other reason, as long as it is reasonable and set out in the tenancy agreement.

Instead of entering the rental unit to show the unit to a prospective purchaser, the landlord can give a registered real estate broker or real estate salesperson written authorization to enter the rental unit with the potential purchaser to view the unit. However, 24 hours written notice is still required, and they must only enter the unit between 8:00 am and 8:00 pm. A landlord is held responsible for an illegal entry committed by their real estate salesperson or other agent. See for example: [TNT-67562-15 \(Re\)](#), 2015 CanLII 22338 (ON LTB).

These entry rules are discussed further in Guideline 19, "[The Landlord's Right of Entry into a Rental Unit](#)".

If a tenant or former tenant believes that a landlord or an agent of the landlord entered their rental unit and did not comply with the rules set out in sections 26 and 27, the tenant can file an application under section 29(1) alleging that the entry was illegal. The application must be filed within one year of the alleged illegal entry.

The tenant must provide evidence proving that it is more likely than not that the landlord entered the unit illegally. Examples of LTB orders addressing this issue include: [TST-47711-13 \(Re\)](#), 2015 CanLII 51510 (ON LTB), [SOL-66537-16 \(Re\)](#), 2016 CanLII 44567 (ON LTB), [CET-57443-16 \(Re\)](#), 2016 CanLII 72151 (ON LTB), [CEL-64631-17 \(Re\)](#), 2017 CanLII 28512 (ON LTB), [SOT-57239-15 \(Re\)](#), 2016 CanLII 39880 (ON LTB).

A written notice of entry must specify the date, time and the reason for entering the rental unit. See for example: [TST-67387-15 \(Re\)](#), 2016 CanLII 52991 (ON LTB). In *Wrona v. Toronto Community Housing Corporation*, 2007 CanLII 3228 (ON SCDC), the Divisional Court held that the notice of entry must specify an actual time of entry. A broad window of time, in that case six hours, during which the landlord may enter is not sufficient. The Court awarded the tenant a rent abatement of \$1,000.00. See also: [TNT-92678-17 \(Re\)](#), 2017 CanLII 60844 (ON LTB), [SWT-92414-16 \(Re\)](#), 2016 CanLII 88158 (ON LTB).

A landlord does not need to serve the tenant with a notice of entry to enter common areas like hallways in apartment buildings or kitchens in rooming houses: [TET-59931-15-RV \(Re\)](#), 2016 CanLII 38298 (ON LTB), [CET-52759-15 \(Re\)](#), 2015 CanLII 92967 (ON LTB), [TEL-74345-16 \(Re\)](#), 2017 CanLII 49018 (ON LTB), [SWL-83420-15 \(Re\)](#), 2016 CanLII 44349 (ON LTB).

In *Nickoladze v Bloor Street Investments/Advent Property Management*, 2015 ONSC 3893 (CanLII), the landlord took photographs during an inspection of the rental unit for use in an upcoming LTB proceeding. The Divisional Court agreed with the LTB that this was not illegal entry. The photographs were taken for a proper purpose because section 27 expressly authorizes a landlord to enter a rental unit for the purposes of conducting an inspection. The Court added that while it might be prudent for a landlord to expressly include the possibility that photographs may be taken in the notice, the failure to do so does not render the entry unlawful.

However, in *Juhasz v Hymas*, 2016 ONSC 1650 (CanLII), the Divisional Court found that, absent a specific term of the lease or the tenant's consent, section 27 does not authorize or require entry into a tenant's unit to take photographs for marketing purposes to advance the sale of the property.

As discussed below, a variety of remedies may be awarded where the LTB finds that the landlord entered the rental unit illegally, although a rent abatement is the most common. Examples of orders awarding rent abatements include: [TST-82863-17 \(Re\)](#), 2017 CanLII 60123 (ON LTB), [TNT-70070-15 \(Re\)](#), 2015 CanLII 73824 (ON LTB), [TST-62285-15 \(Re\)](#), 2016 CanLII 39764 (ON LTB).

T2 Application - Altering the locking system

Section 24 prohibits a landlord from altering the locking system on a door giving entry to a rental unit or residential complex or causing the locking system to be altered during the tenant's occupancy of the rental unit without giving the tenant replacement keys. See for example: [SWT-97686-16 \(Re\)](#), 2017 CanLII 28777 (ON LTB), [TNT-88669-16 \(Re\)](#), 2017 CanLII 14307 (ON LTB), [TST-78142-16 \(Re\)](#), 2016 CanLII 88280 (ON LTB), [CET-55930-16-RV \(Re\)](#), 2016 CanLII 88098 (ON LTB), [TST-54766-14 \(Re\)](#), 2015 CanLII 69352 (ON LTB), [TST-51096-14 \(Re\)](#), 2015 CanLII 22365 (ON LTB).

The [RTA](#) allows a landlord to change the locks during the tenancy so long as the tenant is given a key to the new lock and is not charged for it. See for example: [TST-80082-16 \(Re\)](#), 2017 CanLII 9501 (ON LTB), [TET-73373-16 \(Re\)](#), 2016 CanLII 88739 (ON LTB).

Section 39 prohibits a landlord from recovering possession of a rental unit unless the tenant has vacated or abandoned the unit or the [LTB](#) has issued an order evicting the tenant. This means that a landlord is entitled to change the locks after a tenant permanently vacates or abandons a rental unit. However, if the landlord is not certain if the tenant has permanently vacated the unit the landlord should apply to the [LTB](#) for an order terminating the tenancy pursuant to section 79 on the ground that the tenant has abandoned the rental unit. See: [TST-63050-15 \(Re\)](#), 2015 CanLII 77849 (ON LTB), [TNT-34753-12 \(Re\)](#), 2012 CanLII 74706 (ON LTB), [TST-49622-14-RV \(Re\)](#), 2016 CanLII 38259 (ON LTB), [TNT-73996-15 \(Re\)](#), 2015 CanLII 93369 (ON LTB), [SWT-95978-16 \(Re\)](#), 2017 CanLII 9456 (ON LTB), [TNT-85414-16 \(Re\)](#), 2016 CanLII 72016 (ON LTB).

However, if the [LTB](#) has issued an eviction order and the tenant has not vacated, the landlord can only change the locks under the direction of a Sheriff (Court Enforcement Officer) during the process of enforcement of the order. See for example: [TET-01936-09 \(Re\)](#), 2010 CanLII 25302 (ON LTB).

If a tenant or former tenant believes that a landlord or an agent of the landlord has changed the locks to the rental unit or the residential complex without giving them a replacement key, the tenant can file an application within one year of the date the locks were changed using section 29(1). If the tenant believes that the application is urgent, a request to shorten time to hearing can be filed at the same time.

This type of claim is frequently heard together with allegations that the landlord's conduct is a breach of section 22 (substantial interference) and section 23 (harassment).

T2 Application - Withholding a vital service

Under section 21, the landlord is not allowed to withhold or deliberately interfere with the reasonable supply of any vital service, care service or meal that the landlord is required to supply to the tenant. If the supply of a vital service, care service or meal is stopped because the landlord does not pay the supplier, the landlord is held responsible. See for example: [CET-50826-15 \(Re\)](#), 2015 CanLII 76230 (ON LTB).

The [RTA](#) defines vital services as:

- heat (from September 1 to June 15, in most cases a minimum temperature of 20 degrees Celsius as set out in section 4 of O. Reg. 516/06) See: [HOT-01008-16 \(Re\)](#), 2017 CanLII 9541 (ON LTB),
- fuel,
- electricity,
- gas,
- hot or cold water.

Care services are defined in the [RTA](#) as health care services, rehabilitative or therapeutic services or services that provide assistance with the activities of daily living.

If the alleged interference concerns items that are not defined in the [RTA](#) as a "vital service", such as air

conditioning or internet service, then section 21 of the RTA is not applicable. However, depending upon the specific facts, the tenant may be able to claim that the landlord has breached section 22 (see below) or the Landlord's maintenance obligations under section 20. Maintenance issues are discussed further in Guideline 5, "[Breach of Maintenance Obligations](#)". See for example: [CET-65371-17 \(Re\)](#), 2017 CanLII 28751 (ON LTB), [TNT-26782-12 \(Re\)](#), 2012 CanLII 27978 (ON LTB).

If a landlord reduces or discontinues the supply of a service or facility, for example cable TV or a storage locker, a tenant may be able to file a T3 application under section 130 seeking a reduction in rent and a rent abatement. The rules governing how much the rent should be reduced are found in section 39 of O. Reg. 516/06.

A tenancy agreement may provide that either the landlord or the tenant is responsible for paying for the supply of vital services or care services or meals. Even if the tenant is required under the tenancy agreement to pay for the vital service, care services or meal, the landlord cannot deliberately interfere with reasonable supply. For example, the landlord cannot shut off the supply of water to a rental unit because the tenant has not paid rent. See for example: [TNT-38440-12-RV \(RE\)](#), 2013 CanLII 10813 (ON LTB).

The withholding or deliberate interference of the reasonable supply of vital service/care service/meal must occur during the tenant's occupancy of the rental unit. See for example: [SWT-02323 \(Re\)](#), 2009 CanLII 78056 (ON LTB).

A landlord is not prohibited from shutting off vital services for short periods of time while performing repairs to the residential complex. A landlord should provide tenants with advance notice of such interruptions where possible. See for example: [TNT-70070-15 \(Re\)](#), 2015 CanLII 73824 (ON LTB).

The tenant must prove that it was the landlord who withheld or deliberately interfered with the reasonable supply of the vital service. If the interference was caused by a third party, such as another tenant in the building, the claim will not be successful. See for example: [SWT-93661-16 \(Re\)](#), 2016 CanLII 88482 (ON LTB), [TST-60813-15 \(Re\)](#), 2015 CanLII 34289 (ON LTB). Examples of relevant evidence may include: a record of temperature readings, reports or orders issued by municipal officials, and correspondence between the parties. See for example: [HOT-01008-16 \(Re\)](#), 2017 CanLII 9541 (ON LTB), [SOT-78396-17 \(Re\)](#), 2017 CanLII 48994 (ON LTB), [CET-57443-16 \(Re\)](#), 2016 CanLII 72151 (ON LTB).

There are special rules in the RTA that sometimes apply to the landlord's obligation to supply electricity. Where a suite meter has been installed in a rental unit with the tenant's consent in accordance with section 137, the tenant becomes responsible for paying for electricity. The landlord, the landlord's agent or the suite meter provider can enforce its rights or obligations by interrupting the supply of electricity if the tenant does not make the required payments. In this circumstance electricity is not considered a vital service within the meaning of section 21 and any interference with the supply of electricity is not to be an interference with the tenant's reasonable enjoyment. If a tenant believes that a landlord has not complied with the RTA's rules about suite meters, the tenant may file a T7 application.

If electricity is the primary source of power to heat a rental unit, a landlord cannot terminate their obligation to supply electric heat. However, if there is a separate meter to measure the electricity for other uses in the rental unit, the landlord and tenant can agree to transfer the responsibility for paying the electricity costs for these other uses.

If a tenant or former tenant believes that a landlord or an agent of the landlord interfered with or withheld the reasonable supply of a vital service or care service, the tenant can file an application using section 29(1). The application must be filed within one year of the date the vital service or care service was withheld or interfered with. If the tenant believes that the application is urgent, a request to shorten time to hearing can be filed at the

same time.

A tenant could also allege that there has been substantial interference with reasonable enjoyment where there has been a disruption of service by the landlord. In some circumstances it may be appropriate for a tenant to indicate both grounds on the T2 application. For example, if a landlord is unaware of a disruption in vital service then the tenant may be unable to prove that the landlord deliberately withheld the supply but depending on the facts, may be able to establish that the landlord has substantially interfered with the tenant's reasonable enjoyment. See for example: [TST-54725-14 \(Re\)](#), 2015 CanLII 93465 (ON LTB), [TNT-26782-12 \(Re\)](#), 2012 CanLII 27978 (ON LTB).

T2 Application - Substantial interference

Section 22 states that a landlord shall not at any time during a tenant's occupancy of a rental unit substantially interfere with the reasonable enjoyment of the rental unit or the residential complex for all usual purposes by a tenant or the tenant's household.

Under section 29(1)3, the landlord is also responsible for the conduct of a superintendent or other agent of the landlord if it substantially interferes with the tenant's reasonable enjoyment.

In some cases a third party, such as another resident in the same building, does something that substantially interferes with the tenant's reasonable enjoyment. The landlord has an obligation to respond to a tenant's complaint about the conduct of another resident. The landlord may be found in breach of section 22 if it does not address the tenant's complaints in a reasonable manner.

This is a broad provision that can cover a wide variety of conduct and activities. In some cases conduct that substantially interferes with a tenant's reasonable enjoyment may also constitute a breach of other, more specific sections of the RTA. For instance, if a landlord repeatedly enters a rental unit without providing a required notice of entry, the landlord may be in breach of both section 25 and this section.

The interference must be substantial in nature before it constitutes a breach of section 22 of the RTA. A minor inconvenience or disruption for a brief period of time does not normally result in an abatement of rent: [Pajelle Investments Ltd. v. Herbold](#), [1976] 2 SCR 520, 1975 CanLII 32 (SCC).

Landlord's Own Conduct:

The landlord's own conduct must not substantially interfere with the tenant's reasonable enjoyment of a rental unit. This can include a wide range of conduct. A few examples include: making excessive noise where the landlord and tenant live in the same building, communicating with the tenant in an unreasonable or abusive manner, giving the tenant unnecessary and excessive notices of entry, interfering with the tenant's right to have visitors or occupants at the rental unit.

See for example: [TST-78144-16 \(Re\)](#), 2016 CanLII 100409 (ON LTB), [TNT-70070-15 \(Re\)](#), 2015 CanLII 73824 (ON LTB); [TET-70841-16 \(Re\)](#), 2016 CanLII 72216 (ON LTB), [CET-56443-16 \(Re\)](#), 2016 CanLII 72153 (ON LTB), [TST-65033-15 \(Re\)](#), 2015 CanLII 99141 (ON LTB), [TST-55077-14 \(Re\)](#), 2015 CanLII 75420 (ON LTB).

Sometimes a tenant objects to a notice of termination or other document served by the landlord because they believe the contents are untrue. However, if the landlord was acting in good faith, and did not serve the notice for an improper purpose it will not constitute substantial interference with the tenant's reasonable enjoyment of the rental unit. See for example: [TST-67363-15 \(Re\)](#), 2016 CanLII 71230 (ON LTB), [CET-68043-17 \(Re\)](#), 2017 CanLII 70488 (ON LTB).

Superintendent or Agent

Landlords are responsible for the actions of the superintendent or an agent of the landlord. See for example: [CET-64293-17 \(Re\)](#), 2017 CanLII 28748 (ON LTB), [CET-64847-17 \(Re\)](#), 2017 CanLII 28665 (ON LTB).

Other Tenants

Sometimes it is other tenants living in the same building who are causing the disturbance, not the landlord. However, landlords have a positive obligation to provide quiet enjoyment and take reasonable action to address another tenant's conduct that disturbs the complaining tenant. If the landlord fails to reasonably respond to the complaints, the landlord may be in breach of section 22. While the landlord in such a situation is not directly responsible for the actions of the offending tenant, the landlord's responsibility is linked to a failure to take reasonably necessary actions to ensure that the complaining tenants could reasonably enjoy the premises: *Hassan v. Niagara Housing Authority*, [2000] O.J. No. 5650 (On. Div. Ct.), *First Ontario Realty Corp. v. Appelrouth* [2012] O.J. No. 3639 (Ont. Div. Ct.).

Examples of LTB orders where the landlord was found not to have reasonably responded to tenant complaints include: [TNT-93077-17 \(Re\)](#), 2017 CanLII 60310 (ON LTB), [TST-79928-16 \(Re\)](#), 2017 CanLII 60136 (ON LTB), [EAT-61394-16 \(Re\)](#), 2017 CanLII 48747 (ON LTB), [TST-69619-15 \(Re\)](#), 2016 CanLII 40107 (ON LTB), [TST-69295-15 \(Re\)](#), 2016 CanLII 40109 (ON LTB).

Examples of LTB orders where the landlord was found to have reasonably responded to tenant complaints include: [CET-63203-16 \(Re\)](#), 2017 CanLII 28729 (ON LTB), [SOT-76231-16 \(Re\)](#), 2017 CanLII 28579 (ON LTB).

A landlord cannot be held directly responsible for the actions of third parties which it does not control, such as construction noise coming from an adjacent property. The LTB can consider whether the landlord has taken reasonable steps to reduce the disruption caused by the third party: *First Ontario Realty Corp. v. Appelrouth* [2012] O.J. No. 3639 (Ont. Div. Ct.).

Interference due to work performed by the landlord

There are special rules that apply where the tenant is claiming that the substantial interference is due to maintenance, repairs or capital improvements being performed by the landlord in the rental unit or residential complex.

Section 8 of Ontario Regulation 516/06 contains additional criteria that the LTB must apply in determining whether there is substantial interference when a landlord does maintenance, repairs or capital improvements; as well as criteria for determining whether to order an abatement of rent, and rules for calculating the abatement.

The regulation requires the LTB to consider the effect of the work on the tenant's use of the unit or the complex. The LTB must first determine that the carrying out of the work was an interference that was unreasonable in the circumstances, in order to find that there has been a substantial interference with the tenant's reasonable enjoyment of the unit or complex. If the LTB decides that the effect on the tenant was not unreasonable in the circumstances, the application will be dismissed.

See for example: [TSL-77686-16 \(Re\)](#), 2017 CanLII 28565 (ON LTB); [TST-64765-15 \(Re\)](#), 2017 CanLII 28802 (ON LTB), [TST-47711-13 \(Re\)](#), 2015 CanLII 51510 (ON LTB).

If there has been a substantial interference, the LTB cannot order a rent abatement, regardless of the effect on the tenant, if the landlord has met all of the following ten conditions set out in the regulation:

1. The landlord gave notice to the tenant or former tenant at least 60 days before the commencement of the work, or, in cases of emergency, as soon as was reasonable in the circumstances, concerning the work to be carried out.

2. The landlord gave notice to any prospective tenant of a rental unit at the first opportunity to do so before the landlord entered into a new tenancy agreement with that tenant.
3. The notice describes the nature of the work to be carried out, the expected impact on tenants and members of their households and the length of time the work is expected to take.
4. The notice was reasonably accurate and comprehensive in the circumstances at the time it was given.
5. If there was a significant change in the information provided under paragraph 3, the landlord provided to the tenant or former tenant an update to the notice in a timely manner.
6. The work,
 - i. is necessary to protect or restore the physical integrity of the residential complex or part of it,
 - ii. is necessary to comply with maintenance, health, safety or other housing related standards required by law,
 - iii. is necessary to maintain a plumbing, heating, mechanical, electrical, ventilation or air conditioning system,
 - iv. provides access for persons with disabilities,
 - v. promotes energy or water conservation, or
 - vi. maintains or improves the security of the residential complex.
7. If required under the *Building Code Act, 1992*, a permit was issued in respect of the work.
8. The work was carried out at reasonable times, or if a municipal noise control by-law was in effect, during the times permitted under the noise control by-law.
9. The duration of the work was reasonable in the circumstances.
10. The landlord took reasonable steps to minimize any interference resulting from noise associated with the work.

Where there has been substantial interference and it is possible to order a rent abatement, the LTB must consider the five criteria set out in the regulation when deciding if an abatement is appropriate and the amount of any abatement:

1. The nature, duration and degree of interference with the reasonable enjoyment of the rental unit or residential complex that was caused by the carrying out of the work.
2. Whether the tenant or former tenant is responsible for any undue delay in the carrying out of the work.
3. The steps taken by the landlord during the work to minimize interference with the reasonable enjoyment of the rental unit or residential complex.
4. Whether the tenant or former tenant took advantage of any service provided by the landlord or arrangement made by the landlord that would minimize interference with the reasonable enjoyment of the rental unit or residential complex.
5. Whether a failure to carry out the work could, within a reasonable period of time, reasonably be expected to result in,
 - i. interference with the reasonable enjoyment of the rental unit or residential complex for all usual purposes by a tenant or member of his or her household,
 - ii. a reduction or discontinuation of a service or facility,
 - iii. damage or additional damage to the rental unit, the residential complex or anything in the unit or complex,
 - iv. a risk to any person's health or personal safety, or
 - v. a breach of section 20 or section 161 by the landlord.

The abatement cannot exceed 25% of the monthly rent for any month or part of a month in which there is substantial interference unless the LTB finds that specific circumstances set out in the regulation are present:

- a. a larger abatement is warranted in the circumstances because the interference with the reasonable

enjoyment of the rental unit or residential complex far exceeded the level that would normally be expected, taking into consideration all of the relevant circumstances; and

- b. the LTB is satisfied that,
 - i. the work is not work described in O.Reg. 516/06, s.8(4) paragraph 6,
 - ii. the work was carried out at unreasonable times or at a time that is not permitted under any applicable noise control by-law,
 - iii. the work was carried out in a manner that contravened a condition or requirement of a building permit issued under the *Building Code Act, 1992*,
 - iv. the work was carried out over a period of time far in excess of the amount of time that normally would be required, after taking into consideration any exceptional circumstances beyond the control of the landlord, including weather-related delays, delays in obtaining necessary government approvals or permits and delays caused by market shortages of suitable goods or services or qualified labour at reasonable costs, or
 - v. the landlord refused to take reasonable steps during the work to minimize interference with the reasonable enjoyment of the rental unit or residential complex for all usual purposes by the tenant or former tenant, or by a member of the household of the tenant or former tenant.

In such a case, the LTB cannot order an abatement of rent that exceeds 100% of the rent for each month or part of a month during which the LTB determines that the work substantially interfered with the tenant's reasonable enjoyment of the rental unit or residential complex.

See for example: [TST-75267-16 \(Re\)](#), 2017 CanLII 28560 (ON LTB), [TST-05146-10 \(Re\)](#), 2011 CanLII 101406 (ON LTB).

T2 Application - Harassment

Section 23 states that a landlord shall not harass, obstruct, coerce, threaten or interfere with a tenant. Those terms are not defined in the RTA.

The Ontario *Human Rights Code* defines "harassment" as:

engaging in a course of vexatious comment or conduct that is known or ought reasonably to be known to be unwelcome.

This or similar definitions of harassment are often relied upon in LTB orders. See for example: [TST-55077-14 \(Re\)](#), 2015 CanLII 75420 (ON LTB), [SWT-89598-16 & SWT-93014-16 \(Re\)](#), 2016 CanLII 100341 (ON LTB), [TET-73196-16 \(Re\)](#), 2017 CanLII 49021 (ON LTB).

In [TST-64347-15 \(Re\)](#), 2015 CanLII 85055 (ON LTB), the LTB found that a "threat" could be defined as coercion employed to overcome the free will of others for the purpose of extracting some gain.

Tenant applications often allege that the landlord's conduct is a breach of both section 22 (substantial interference) and section 23 (harassment). In these circumstances the LTB will consider the alleged conduct and determine if it breaches either or both of these provisions. See for example: [CET-55540-16 \(Re\)](#), 2016 CanLII 44615 (ON LTB), [TNT-75619-15 \(Re\)](#), 2015 CanLII 93370 (ON LTB).

To determine whether a landlord's conduct harasses, obstructs, coerces, threatens or interferes with a tenant, the LTB will generally consider the cumulative effect of the landlord's conduct upon the tenant in the context of the landlord-tenant relationship. This is a very fact specific determination, and each application involves unique circumstances and considerations. See for example: [TST-81468-17 \(Re\)](#), 2017 CanLII 60758 (ON LTB), [TNT-84735-16 \(Re\)](#), 2016 CanLII 88736 (ON LTB), [TET-73530-16 \(Re\)](#), 2017 CanLII 49118 (ON LTB), [CET-68184-17](#)

([Re](#)), 2017 CanLII 70306 (ON LTB).

Section 23 concerns the conduct of the landlord, not other residents of the residential complex. However, as discussed above, a landlord may be found in breach of section 22 if the landlord is aware of harassing conduct committed by one tenant against another tenant and fails to take reasonable measures to investigate and respond to the problem. See for example: [CET-53660-15 \(Re\)](#), 2016 CanLII 44627 (ON LTB).

An act by a landlord intended to frighten, obstruct, threaten or coerce a tenant, and which might reasonably be construed as such, will be a breach of the [RTA](#) even if the tenant is not actually intimidated. [Manpel v. Greenwin Property Management](#), 2005 CanLII 25636 (ON SCDJ).

In *Taft and Rumble v. Whitesands Apartments* [2009] O.J. No. 3198 (Div. Ct.), the Divisional Court upheld the [LTB's](#) finding that the landlord had harassed the tenants by aggressively knocking on her door at all hours, mocking the tenant, threatening to withhold a vital service, making unfounded complaints to the police about noise and alleging to the police that the tenants flooded their apartment, attempted to force themselves into the apartment, threatening the tenants' guests with physical harm, refusing to give rent receipts and creating noise disturbances in the vacant unit above the tenants. The Court also ordered \$1,000 in damages for mental distress in addition to the rent abatement ordered by the [LTB](#).

The [LTB](#) has found that a landlord did not engage in harassing conduct merely by exercising her rights under the [RTA](#) to serve a tenant a notice of termination and filing an application with the [LTB](#): [SOT-65339-15 \(Re\)](#), 2016 CanLII 44377 (ON LTB). Similarly, while a tenant may object to certain types of communication from the landlord, there is no breach of the [RTA](#) if the communication is made for a proper purpose, such as addressing complaints made against a tenant by another tenant or tenants or inquiring about non-payment of rent: [TST-70323-16 \(Re\)](#), 2016 CanLII 71222 (ON LTB), [TET-72002-16 \(Re\)](#), 2016 CanLII 88450 (ON LTB).

If a tenant or former tenant believes that a landlord or an agent of the landlord harassed, obstructed, coerced, threatened or interfered with the tenant, the tenant can file an application under subsection 29(1). The application must be filed within one year of the date the conduct occurred.

T2 Application - Landlord did not give Tenant 72 hours to remove property after the Sheriff enforced eviction

Under subsection 41(2), a landlord must allow a tenant who has been evicted by the Sheriff 72 hours after their eviction to get their property. The landlord must make the evicted tenant's property available from 8 am to 8 pm during this 72 hour period. The tenant's property must be kept at the rental unit or a location near the rental unit so that the tenant can get it without difficulty. The landlord must not sell, keep or otherwise dispose of the tenant's property during this period. The parties can agree to other terms regarding what to do about the tenant's property. See for example: [CET-53957-15 \(Re\)](#), 2016 CanLII 44620 (ON LTB).

This section of the [RTA](#) does not apply to a tenant who has vacated a rental unit in accordance with an agreement to terminate the tenancy, a notice of termination from the landlord or tenant, a LTB order, or where the tenant was a superintendent. See: [SWT-40272-12 \(Re\)](#), 2012 CanLII 85330 (ON LTB).

The tenant must prove that the landlord breached the obligation to make the tenant's property available in the 72 hour period. See for example: [TNT-32874-12 \(Re\)](#), 2012 CanLII 46753 (ON LTB), [TNT-37601-12 \(Re\)](#), 2012 CanLII 98076 (ON LTB).

In *Mputu v. Wright*, [2004] O.J. No. 6055 (Ont. Sup. Ct.), the Court held that the landlord has an obligation to make the tenant's goods available during the time period set out in *Tenant Protection Act*, and a positive onus to facilitate the removal of the tenant's belongings. The Court noted that an evicted tenant is in a position of

weakness and vulnerability, and simply taping the Sheriff's notice to the door with a contact phone number is not sufficient to meet the landlord's obligation. In this case the Court stated that someone should have been available at the rental unit, or reasonable, positive steps should be taken to make arrangements for the tenants to remove their belongings.

More recently in *Beauge v. Metcap Living Management Inc.*, 2012 ONSC 1160 (CanLII), the Court applied the analysis used in *Mputu v. Wright* to an application made under the RTA and approved the LTB's decision to estimate the reasonable replacement costs for property that was improperly disposed of by the landlord.

The landlord's positive obligation to make the tenant's property available in the 72 hours following the eviction and the remedy to be awarded in the event of a breach is also discussed in these LTB orders: [SWT-84952-16 \(Re\)](#), 2016 CanLII 44315 (ON LTB); [SOT-79013-17 \(Re\)](#), 2017 CanLII 48975 (ON LTB).

One Year Limitation Period for filing T2 application

Most T2 applications must be made by a tenant or former tenant within one year of the date the alleged breach occurred. When determining whether an application has been made in time under subsection 29(2), the LTB will have to determine when the alleged breach occurred.

When a breach is a single event such as an illegal entry, then the limitation period begins on the day the event happened. Where the breach is not a single event but is ongoing or recurring, such as the withdrawal of a vital service, the breach occurs over a period of time and the one-year limitation period runs from the date that the vital service is restored to the tenant. However, in all cases the limitation period is one year.

The fact that the tenant did not apply to the LTB when the breach first happened does not affect the right to file an application. The tenant is not required to bring an application immediately. However, the application cannot include an issue which was resolved by the landlord more than one year before the application was filed.

See for example: [SWT-96828-16 \(Re\)](#), 2017 CanLII 9488 (ON LTB); [TNT-75379-15 \(Re\)](#), 2016 CanLII 39878 (ON LTB).

There is no limitation period in the RTA for T2 applications alleging that landlord breached the obligation to make the tenant's property available in the 72 hour period after the tenant is evicted by the Sheriff.

T2 Application - Remedies

If the LTB determines that the landlord, superintendent or agent has violated the rights of the tenant under subsection 29(1), the LTB may order any one or more of the remedies mentioned in subsection 31(1). These include:

- ordering the landlord, superintendent or agent not to engage in any of those actions against any of the tenants in the complex;
- ordering an abatement of rent;
- ordering the landlord to pay to the LTB an administrative fine not exceeding the greater of \$25,000 and the monetary jurisdiction of the Small Claims Court;
- ordering the landlord, superintendent or agent to pay compensation to the tenant for property that has been damaged, destroyed or disposed of as a result of the action;
- ordering the landlord, superintendent or agent to pay other reasonable out-of-pocket expenses that the tenant has incurred or will incur;
- where the tenant has been illegally locked out, ordering the landlord to allow the tenant to recover possession of the rental unit, and to refrain from re-renting the unit in the interim;
- terminate tenancy and order eviction (see s. 32); and/or

- making any other order it considers appropriate.

If the conduct caused the tenant to vacate the unit, subsection 31(2) permits the LTB to order the landlord to pay a specified amount to the tenant as compensation for:

- increased rent the tenant incurs within 12 months, and
- reasonable moving and related expenses.

Subsection 31(3) permits the LTB to order the landlord to allow the tenant to regain possession of the rental unit if the landlord illegally changed the locks and the rental unit is still vacant. If the landlord does not voluntarily comply with the LTB's order by allowing the tenant to regain possession, the tenant can enforce the LTB's order through the Sheriff's office. The LTB's order will expire at the end of 15 days after the date it was issued if it has not been filed by the tenant with the Sheriff's office. Even where the tenant files the order with the Sheriff's office it will expire at the end of the 45th day.

Abatement Orders

A rent abatement is a monetary award expressed in terms of a portion of past or future rent. It may be a lump sum payment the landlord is ordered to pay the tenant which effectively orders the landlord to give back part of the rent paid. It may be an order allowing the tenant to pay less rent by a certain amount or percentage, or even to pay no rent, for a specified time period. It could also be a combination of these.

If the LTB determines that an abatement of rent is appropriate in the circumstances, the LTB will determine the amount and duration of the abatement.

Factors affecting the calculation of the rent abatement

Factors that may be relevant to the determination of the appropriate rent abatement include, but are not limited to:

- The impact of the breach upon the tenant and the tenant's household,
- The frequency or duration of the actions or events,
- The landlord's intentions in doing the action complained of by the tenant,
- Whether the landlord has already rectified the problem, and did so within a reasonable time,
- Whether the tenant is fully or partially responsible for the problem or hindered or interfered with the landlord's efforts to address the problem.

In general, the more serious the breach and its impact on the tenant, the larger the rent abatement.

A rent abatement cannot exceed 100% of the rent payable during the time period covered.

When the LTB finds the landlord engaged in actions against the tenant, it considers the effects those actions would have on an average tenant. However, if the landlord was aware that the tenant has a particular susceptibility to the problem, it will consider those circumstances. For example, experiencing second-hand smoke from the landlord's residence would be disturbing for most tenants. However, if the landlord knows the tenant has severe asthma and is therefore particularly vulnerable, second-hand smoke may be seriously disturbing and may result in a larger abatement of rent.

As discussed above, if the landlord's conduct meets the definition of "work", the LTB must be guided by the criteria and limitations found in section 8 of O.Reg. 516/06.

If an employee, agent or officer of the landlord such as a superintendent or property manager is proven to have engaged in the actions, the landlord may be ordered to pay an abatement whether or not that person was acting

properly under instructions from the landlord.

A superintendent or agent would not be ordered to pay an abatement of rent, since the tenant pays rent to the landlord. A superintendent or agent could be ordered to pay compensation to the tenant. See below under "other appropriate orders".

Section 16 requires the LTB to also consider whether the tenant has taken reasonable steps to minimize his or her losses arising from the landlord's breach when determining the appropriate rent abatement.

If the tenant owes the landlord arrears of rent, any abatement awarded to the tenant must be applied to offset the arrears: *Marineland of Canada Inc. v. Olsen*, 2011 ONSC 6522 (CanLII).

Duration of Rent Abatement

In general, the duration of the rent abatement corresponds to the period of time that the breach occurred. However, if the breach is a single event, such as an illegal entry, the length of the breach may not be as relevant.

The one year limitation period in subsection 29(2) also affects the maximum duration of any rent abatement.

If the application is filed within one year of the breach and the breach is no longer occurring as of the date of the order, the LTB may award a rent abatement for a period calculated from one year prior to the application filing date to the date the breach ended. Even if the breach is ongoing and began more than one year before the application is filed, the rent abatement is limited to one year prior to the date the application was filed. While evidence of events prior to the commencement of the one year period may be admissible at a hearing before the LTB, for example, to enable the LTB to understand the cause of the disrepair, this does not permit the LTB to extend the remedy back to a time prior to the commencement of the statutory limitation period: *Toronto Community Housing Corporation v. Allan Vlahovich*, 2010 ONSC 1686 (CanLII).

If the problem has not been resolved as of the date of the hearing, the LTB may order an abatement of rent covering the period up to and including the month of the hearing, and may also consider ordering an ongoing rent abatement that continues until such time as the problem has been resolved. See *Goodman and Pearlman v. Menyhart and Menyhart*, [2009] O.J. No. 1602.

Orders Prohibiting Actions Against Tenants

The LTB may order the landlord, superintendent or agent not to engage in a specific activity against the tenant and members of their household. The LTB may also order landlord, superintendent or agent not to engage in any of the listed activities against any tenant in the complex. This remedy may be appropriate even if there is no evidence that the landlord has engaged in similar actions against another tenant or tenants. The main test in deciding whether to order this relief is whether it is in the public interest to deter this respondent from any further occurrence of actions against tenants. This is particularly true if the actions against the tenant threatened the health or safety of the tenant or a member of their household.

Orders Terminating Tenancies

The LTB may order that the tenancy be terminated on a specific date, either on a future date or retroactively. This remedy is used in serious cases where the tenant requests termination. This remedy may also be ordered on consent of both parties if, for example, they both feel the relationship cannot continue.

If the landlord's actions caused the tenant to move out of the unit, and the LTB finds the decision to move was reasonable in the circumstances, the LTB may retroactively terminate the tenancy, usually as of the date the

tenant vacated the unit. The tenant's obligation to pay rent ends on the date the tenancy ended. The LTB may order the landlord to refund all rent paid after the effective date of termination, plus the rent deposit.

If the LTB makes an order terminating the tenancy the order will provide that the Sheriff may enforce the order for eviction in the event the tenant does not vacate by the date specified in the order.

Where termination of the tenancy is ordered, the effective date of the eviction may not be earlier than the termination date specified in the order.

Orders to Pay an Administrative Fine

An administrative fine is a remedy to be used by the LTB to encourage compliance with the RTA and to deter landlords from engaging in similar activity in the future. This remedy is not normally imposed unless a landlord has shown a blatant disregard for the RTA and other remedies will not provide adequate deterrence and compliance. Administrative fines and rent abatements serve different purposes. Unlike a fine, a rent abatement is intended to compensate a tenant for a contravention of a tenant's rights or a breach of the landlord's obligations.

An administrative fine should not be confused with costs. Administrative fines are payable to the Minister of Finance and not to a party. Costs may be ordered where a party's conduct in the proceeding before the LTB was unreasonable and may be ordered payable to a party or to the LTB.

See for example: [TET-68873-16 \(Re\)](#), 2016 CanLII 52829 (ON LTB).

These rules are discussed further in Guideline 16, "[Administrative Fines](#)".

Other Appropriate Orders

The RTA allows the LTB to make any other order which may be appropriate, in addition to the remedies set out in section 31. As is the case with all requested remedies, parties will have an opportunity to make submissions on the requested order. The LTB must also consider the practicality and enforceability of the proposed order.

A similar provision in the *Tenant Protection Act* was found to provide the authority to award general damages for breach of contract. In [Mejia v. Cargini](#), 2007 CanLII 2801 (ON SCDC), the Court awarded \$4,000.00 for damages arising from the breach of the tenant's contractual right to quiet enjoyment, in addition to the abatement of rent of \$900.00 ordered by the tribunal. In *Taft v. Whitesands Apartments*, [2009] O.J. No. 3198, the Divisional Court found that the tribunal had the authority to award damages for mental distress due to the landlord harassing and intimidating the tenant in addition to a rent abatement. The Court noted however that in assessing the amount to be awarded, it must be kept in mind that there is an element of compensation for mental distress in the abatement of rent, and therefore, the sum awarded should not result in double compensation.

Compensation for Future Rent and Moving Expenses

If the LTB finds the conduct described in the application caused the tenant to move out it can order the landlord to pay the tenant's moving expenses and other reasonable out of pocket expenses. These are costs which the tenant has already incurred which may be proven by bills or receipts, or will incur and may be proven by contracts, receipts or quotations. The term "other like expenses" would include other costs that were incurred or will be incurred in order to move into another unit, such as a fee paid to a realtor or expenses to move the telephone or cable service.

The tenant may also claim "all or any portion of any increased rent which the tenant has incurred or will incur for a one year period after the tenant has left the rental unit". The tenant must establish that they have rented

another unit, and what the rent for that unit is. If the rent is higher, the total amount that could be ordered is the difference over a 12 month period. However, if the tenant has rented a larger unit or a better unit, the LTB would consider evidence of the rents for units in the neighbourhood similar to the unit which is subject of the application. The compensation could be limited to the lower amount.

The tenant is not required to make an exhaustive search of every possible rental unit. If the tenant rents a comparable unit, after a reasonable search, they should not be expected to have found the lowest rent possible. Further, the tenant cannot be expected to have rented another unit from the respondent, even at a lower rent.

In some cases, a tenant who has been forced to leave the rental unit as a result of the landlord's actions will be living in temporary accommodation at the time of hearing. The tenant may be paying little or no rent for this temporary accommodation. However, if the tenant can establish that they have found permanent accommodation after a reasonable search and intend to move into this accommodation, the tenant could make a claim for the increased rent they will incur once they move into the permanent accommodation. Such proof could include a rental application or a signed lease. However, the time limit for making such a claim is 12 months after the tenant vacated the rental unit which is the subject of the application.

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